

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. of 2023

In the matter of:

An application under section 526 of the Code of Criminal Procedure.

-And-

In the matter of:

Mohammad Ali Munshi

.... Accused-Petitioner

-Versus-

The State

....Opposite Party

Mr. Abdullah Al Ashik, Advocate

.... For the accused-Petitioner.

Mr. Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State

Mr. Md. Harun-Or-Rashid, Advocate

.... For the opposite party No.2.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 27th August, 2023

By this application under Section 526 of the Code of Criminal Procedure the sole accused, namely Mohammad Ali Munshi of Session Case No.607 of 2020 arising out of C.R. Case

No.473 of 2018 under Section 138 of the Negotiable Instrument Act, 1881 wants to transfer above case to any other competent Court from the Court of Joint Session Judge, 1st Court, Dhaka for trial.

Mr. Abdullah Al Ashik, learned Advocate for the petitioner submits that the accused and the complainant are the cousin brothers and both of them are from Shariatpur district. As such convenience of both the parties will be ensured if above case is transferred from Dhaka to any other competent Court in Shariatpur.

Mr. Md. Harun-Or-Rashid, learned Advocate for the opposite party No.2 Md. Kamruzzaman Liton submits that this case was pending for trial in a competent Court in Shariatpur district but the accused petitioner instituted Criminal Miscellaneous Case No.17539 of 2019 under Section 526 of the Code of Criminal Procedure to this Court for transfer of above case to any competent Court in Dhaka and on the basis of above case this case was transferred to Dhaka from Shariatpur district. Above case has been fixed for hearing of arguments tomorrow after conclusion of evidence.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from a copy of the judgment passed by a Division Bench of this Court in Criminal Miscellaneous Case No.17539 of 2019 that at the instance of the accused petitioner above case was transferred from the 2nd Court of Joint Session Judge, Madaripur to the Court of Joint District Judge, Dhaka and on conclusion of evidence above case has been fixed for arguments hearing. Since at the instance of the petitioner above case was transferred to the present Court of Joint Session Judge, Dhaka we are unable to find any substance in this petition at the instance of the same accused for further transfer of above case to another Court.

In above view of the materials on record we are unable to find any substance in this application under Section 526 of the Code of Criminal Procedure and the same is rejected summarily.

MD. MASUDUR RAHMAN
BENCH OFFICER